

10. S-PR-0014191 In Re the Estate of DeVore, Nancy Jeanne

Missing sufficient notice of hearing for spousal property petition. Notice as filed and served states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

Missing relationship(s) of persons identified in ¶ 9 to decedent.

Clarification is needed: Attachments 7 and 7a are in conflict as to the nature of the interest subject to this proceeding. Attachment 7 identifies a 12.5% interest in 1220 Putnam St, Antioch; Attachment 7a describes property which is not limited to a 12.5% interest. Both attachments fail to state any characterization of the property as either community, quasi-community, or separate.

It is recommended the petition be denied. Petitioner relies on decedent's will, which does not make a gift of the subject property to petitioner as surviving spouse; rather, the will directs the subject property to the trustee of decedent's trust. Relief under Prob.C. § 13650 is limited to a determination of decedent's property passing to surviving spouse. Prob.C. § 13650 does not provide for any determination that property passes to a trustee. It is immaterial that the surviving spouse presently also serves as trustee. Property passing to a trustee is not trustee's individual property. Instead, it will be subject to trust administration (as described at length by petitioner).

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are presented to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

11. S-PR-0014192 In Re the Virginia B. Roush Rev Trust

Petition to modify irrevocable trust is recommended for approval as prayed.

12. S-PR-0014193 In Re the Ellard and Michael Roush Exempt Trust

Petition to modify irrevocable trust is recommended for approval as prayed.

13. S-PR-0014194 In Re the Susanne Stafford Trust

Petition to accept trustee resignation and appoint successor trustee without bond is recommended for approval as prayed.

14. S-PR-0014195 In Re the Estate of Farrell, Bryan

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department